

Justification for Exception to Fair Opportunity
Exceeding the SAT pursuant to FAR 16.505(b)(2)(ii)(B)

JEFO No.: FY25-064

Date: February 19, 2025

PR Number: PCCA-25-00030

1. Agency and Contracting Activity.

This Justification for an Exception to Fair Opportunity supports a procurement action to be conducted under the authority of FAR Subpart 16.5 – Indefinite-Delivery Contracts. The procurement action is generated by the Department of Homeland Security (DHS), Cybersecurity and Infrastructure Security Agency (CISA), Chief of the Contracting Office (COCO).

2. Nature and/or description of the **action** being approved.

In support of its mission, the CISA Office of the Chief Information Officer (OCIO) requires uninterrupted Program Management and Operations and Maintenance (O&M) support for the CISA Gateway. The current support ends on February 28, 2025. CISA/COCO intends to award a task order to Capgemini Government Solutions LLC under General Services Administration (GSA) Alliant 2 Governmentwide Acquisition Contract (GWAC) contract number 47QTCK18D0054 without considering other contract holders pursuant to FAR 16.505(b)(2)(ii)(B).

3. A description of the supplies or services required to meet the agency's need (including the estimated value).

The Contractor shall:

- Maintain existing capabilities and tools to support CISA Gateway mission.
- Adopt and incorporate CISA's enterprise services into IT systems supporting CISA Gateway's mission.
- Provide Tier II and III level support to users of CISA Gateway.

This requirement is a short-term logical follow-on to Task Order 70RCSA19FR0000012. Continued O&M support is required to maintain the functionality of CISA Gateway. The period of performance shall be 12 months to include a 6-month base period and two (2) 3-month option periods. Services are anticipated to commence on March 1, 2025. The total estimated value is [REDACTED]

4. Identify the exception to fair opportunity and supporting rationale, including a demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the exception cited.

 X FAR 16.505(b)(2)(i)(C). The order must be issue on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

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Rationale:

The CISA Gateway provides various data collection, analysis, and response tools in one integrated system through a single user registration, management, and authentication process. It is the hosting environment for all CISA Infrastructure Security Division (ISD) and Integrated Operations Division (IOD) operational tools for assessing critical infrastructure, physical and cyber security. CISA Gateway enables proper collection of critical infrastructure vulnerabilities and allows for CISA to properly advise Critical Infrastructure organizations and provide proper responses to threats from CISA and the federal government. CISA Gateway is a level 2 DHS acquisition program with its own appropriations from Congress. The system provides capabilities to fulfill numerous authorities and mandates, to include the Protected Critical Infrastructure Information Management System (PCIIMS), which is a statutory requirement. If CISA Gateway is not maintained, CISA will lack proper protection for critical infrastructure and response to Critical Infrastructure threats.

Initial Task Order 70RCSA19FR0000012, competitively awarded via the GSA Alliant 2 GWAC, included cloud hosting, program management, and O&M support for the CISA Gateway as it was migrated to CISA's cloud. The scope of the logical follow-on continues the same program management and O&M support as the initial order, while moving away from hosting, development, and/or enhancements of the current system. There are currently no Federal staff available to meet this support need, and the current order expires on February 28, 2025. The task order will be structured in such a way that the current O&M support can be transitioned in a timely, cost-effective manner.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

Pursuant to FAR 16.505(b)(3), if the service prices were not established at the IDIQ level, then the Contracting Officer will establish prices for the order using the policies and methods in FAR 15.4. The Contracting Officer anticipates a fair and reasonable price will be achieved based on utilization of the rates established by the GSA Alliant 2 GWAC, consideration of historical pricing, and comparison of the labor mix and level of effort with the Independent Government Cost Estimate (IGCE).

6. Any other facts supporting the justification.

None noted.

7. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

While there are no known small or other than small businesses capable of supporting the O&M of the CISA Gateway within the specific short term of this requirement except for Capgemini, CISA is actively monitoring the commercial marketplace to remove barriers for a long-term, competitive effort. The market research underway for a new Infrastructure Security IT Systems support effort, which will include O&M and ongoing development and enhancements of CISA Gateway, suggest the potential for robust competition and small business participation. At this time, the logical follow-on to sole-source the continuation of O&M is necessary to support CISA's mission.

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8. DHS CISA intends to post this requirement on www.sam.gov pursuant to FAR 16.505(b)(2)(ii)(D).

9. Technical/Requirements Personnel Certification.

Pursuant to FAR 16.505(b)(2)(ii)(B)(9), I certify that this requirement meets the Government's minimum need and that the supporting data, which form a basis for the justification, are accurate and complete.

[Redacted Signature]

2/19/25

[Redacted Name]

Date

Technical Representative/COR

10. Contracting Officer Certification

Pursuant to FAR 16.505(b)(2)(ii)(B)(8), I certify that this justification is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

2/19/25

Date

Contracting Officer

11. Approval.

I hereby determine that the circumstance in FAR 16.505(b)(2)(i)(C) applies.

[Redacted Signature]

Date: 2025.02.20 13:45:46
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Procuring Activity Advocate for Competition

Date